

## **PROACTIVE BEHAVIOR SERVICES INDEPENDENT CONTRACTOR AGREEMENT**

This Agreement is made between Brecksville-Broadview Heights City Schools ("District"), and Proactive Behavior Services of 12573 Chillicothe Road, Chesterland, OH 44026.

### **RECITALS**

*WHEREAS*, Proactive Behavior Services is in the business of providing assessment, development, implementation, and training of behavioral and educational programs for children with special needs and for children who are typically developing; and

*WHEREAS*, all Proactive Behavior Services employees have provided evidence of satisfactory criminal background checks and all BCBAs have been duly certified as Behavior Analysts by the Behavior Analyst Certification Board ("BACB"), and are Certified Ohio Behavior Analysts (COBA); and

*WHEREAS*, Proactive Behavior Services has provided a copy of the BACB Professional and Ethical Compliance Code for Behavior Analysts ("Code") to the District and has affirmed its ability and intent to abide by all provisions of the Code in the execution of its duties and those of its employees in fulfilling the terms of this Agreement.

*NOW, THEREFORE*, in consideration of the mutual promises contained herein the parties agree as follows:

#### **A. TERM**

This Agreement shall be effective commencing on July 1st, 2023, and shall continue in effect until June 30<sup>th</sup>, 2024 unless otherwise terminated by either party with thirty (30) days written notice.

#### **B. FEES AND EXPENSES**

- Services will include no more than 150 hours of BCBA services until the end of the contract term at a rate of \$158 per hour. BCBA services include student specific training, consultation, Functional Behavior Assessment (FBA), direct and indirect services, and team meetings. Services may also include consultation for classroom management, capacity building, or topics related to educational programming (e.g., data collection procedures).

- When requested and available, services may include no more than 800 hours of Behavior Technician services until the end of the contract term at a rate of \$60 per hour.

Services should be reimbursed within thirty (30) days following receipt of invoices from Proactive Behavior Services for the services delivered the previous month. Proactive Behavior Services will receive a Form 1099 from the District reflecting all earnings, and will assume all responsibility for payment of all taxes imposed on Proactive Behavior Services' wages, including federal, state, and local income taxes and federal self-employment taxes. Proactive Behavior Services also agrees to hold the District harmless from, and will assume any liability or penalties related to, the District's failure to withhold income tax or federal FICA tax.

### **C. CLIENT RIGHTS**

Proactive Behavior Services will provide services to District student(s) in accordance with the terms of student IEP, BIP, and/or treatment plan. Proactive Behavior Services acknowledges that the District is the client within the meaning of the Code. Proactive Behavior Services further acknowledges that the student(s) served is(are) the ultimate beneficiary(ies) of services, and, to the extent the student(s) can also meet the Code's definition of client, agrees that the District is the primary client. In the event that Proactive Behavior Services believes that a conflict in roles develops at any period of time covered by this Agreement, it agrees to comply with all applicable Code provisions. In the event Proactive Behavior Services believes that discontinuation of services is required by the Code, it agrees to give the District notice of this belief and to meet with the District to address its concerns.

### **D. CONSENT**

District agrees to include services within the provisions of IDEA in order to address consent. If a student(s) does not have IDEA provisions, written consent with the parent(s) of the specific student(s) must occur. General classroom consulting that does not specify an individual student does not require consent.

### **E. INSURANCE: Professional Liability**

Proactive Behavior Services will provide its own malpractice professional liability insurance with limits of at least \$1,000,000 per individual occurrence to cover liability for any claims arising out of the performance of services in the area of behavioral intervention.

**F. INDEPENDENT CONTRACTOR STATUS**

As an independent contractor, Proactive Behavior Services acknowledges and agrees that its employees shall have no entitlement to, and expressly waives, any benefits (health insurance, retirement or other benefits) or rights otherwise available to certified or non-certified employees of the District. Proactive Behavior Services agrees that this foregoing agreement and waiver of benefits or other rights maintained by employees of the District shall apply notwithstanding any subsequent determination of any kind, by any person or governmental entity, that Proactive Behavior Services or Leah Gongola has been misclassified as an independent contractor.

**G. SERVICES**

The contracted behavior services will conform to applicable District policies and administrative guidelines and will be provided consistent with the individual education plans (IEPs) of the District's students served by Proactive Behavior Services. The frequency of progress reports will be specified at the onset of cases and will be submitted to the District for each student served.

**H. CONFIDENTIALITY**

Proactive Behavior Services agrees to maintain the confidentiality of any information related to the District's students and will not share information with any entities or persons other than the District and/or the respective students' parents without the express consent of the District and the respective students' parents.

**I. ENTIRE AGREEMENT**

This Agreement contains the entire agreement between the parties with respect to the services to be provided to the District and there are no representations, understandings, or agreements (oral or written) which are not included within this Agreement.

PROACTIVE BEHAVIOR SERVICES

By: Leah Gongola  
Name

Founder and CEO  
Title

05/11/2023  
Date

BRECKSVILLE-BROADVIEW CITY SCHOOLS

By: \_\_\_\_\_  
Name Title Date

By: \_\_\_\_\_  
Name Title Date